

25NWCV00393 25NWCV00393

County: los-angeles

Division: Civil Law and Motion

Department: C

Hearing date: 2026-07-28

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Case Number: 25NWCV00393 Hearing Date: July 28, 2026 Dept: C

AGUILAR vs MIKE TOPANGA, INC. DBA THE HOLIDAY, et al.

CASE NO.: 25NWCV00393

HEARING: 7/28/26 @ 9:30 AM

#10

TENTATIVE ORDER

Plaintiff ALEX

PETER AGUILAR's Motion to Quash Deposition Subpoena for Production of Business

Records is GRANTED. Plaintiff's Motion for Monetary Sanctions is DENIED. Defendant MIKE TOPANGA, INC. dba THE HOLIDAY

GENTLEMEN'S CLUB's Motion for Sanctions is GRANTED in part. Sanctions in the amount of \$1,175.00 are imposed upon Plaintiff and Plaintiff's counsel, jointly and severally, payable within 30 days.

Defendant to give NOTICE.

Plaintiff ALEX PETER AGUILAR (Plaintiff) moves

for an order quashing defendant MIKE TOPANGA, INC. dba THE HOLIDAY GENTLEMEN'S CLUB's (Defendant) subpoena to Plaintiff's prior employers pursuant to Code of Civil Procedure sections 1987.1; 2023.010.

Background

This

is a premises liability case. Plaintiff alleges that on July 15, 2023, in the parking lot of The Holiday Gentlemen's Club, located at 10915 Norwalk Boulevard, Santa Fe Springs, California, Plaintiff was a lawfully present patron when he was attacked by five individuals who punched, kicked, and stomped on his head more than twenty times, rendering him unconscious. As a result of Defendant's failure to provide adequate security, Plaintiff sustained serious injuries. (First Amended Complaint, ¶¶ 8-18.)

Legal Standard

“If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court’s own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person.” (CCP § 1987.1(a).)

A separate statement is required for a motion to quash. (California Rules of Court (CRC) Rule 3.1345(a)(5).) This separate statement must set forth the particular documents or demands at issue and the factual and legal reasons why production should not be compelled. (CRC Rule 3.1345(c).)

“A deposition subpoena that commands only the production of business records for copying shall designate the business records to be produced either by specifically describing each individual item or by reasonably particularizing each category of item” (CCP § 2020.410 (a).)

Current

discovery standards hold that, “any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action . . . if the matter either is itself admissible in evidence or

appears reasonably calculated to lead to the discovery of admissible evidence.”
(Board of Registered Nursing v. Superior Court (2021) 59 Cal.App.5th
1011, 1039.)

Discussion

On April 10, 2026, Defendant issued two
Deposition Subpoenas for Production of Business Records directed to: (1)
Allegis Group, Inc. (MCS #70541-31); and (2) Safran Aerosystem Services
Americas, LLC (MCS #70541-32), both commanding production of records by May 11,
2026. Both subpoenas are identical in scope and demand, without any limitation
as to time or subject matter, “[a]ny and all documents concerning the
employment or the engagement as an Independent contractor” of Plaintiff,
including but not limited to resumes, contracts, offer letters, job
descriptions, discipline records, performance reviews, termination reports,
absence records, incident reports, pre-employment examination records, W-2 and
1099 forms, compensation and benefits information, health plan records, and
“all documents included in your files concerning the above listed
subject.” (Asryan Declaration, ¶ 2, Exh. 1.)

Plaintiff argues the subject deposition
subpoena seeks private information protected by the California Constitution,
such that a heightened standard for discovery applies. (Calif. Const. Art. 1, §
1; Britt v. Sup.Ct. (San Diego Unified Port Dist.) (1978) 20 Cal.3d 844,
855-856.) Plaintiff contends the request
is impermissibly overbroad because Defendant requests Plaintiff’s entirety of
Plaintiffs employment records from two separate employers, Allegis Group, Inc.
and Safran AerosystemServices Americas, LLC, without any restriction as to time
period or subject matter. Defendant’s demand encompasses Plaintiffs private
compensation, tax, benefits, and personnel records.

In opposition, Defendant argues that during the
meet and confer process, Plaintiff’s counsel proposed limiting the records
relating to the injuries at issue and/or workers’ compensation medical records.
Defendant agrees that this scope of documents should be produced in response
the subpoenas. Therefore, the parties agreed that wage and financial records
need not be produced. Defendant demands the
following: (1) employment records showing any leaves of absence following the
incident, and (2) any records showing any work restrictions after the incident.
These records are directly relevant to the case because they would tend to show

whether or not Plaintiff could and did continue working at his job following the incident.

In reply, Plaintiff contends that Defendant failed to withdraw the currently active and unlimited subpoenas. Defendant could have withdrawn these subpoenas and issued new narrowly tailored version that were limited to the scope that the parties agreed upon. Thus, Plaintiff's motion remained necessary after the meet and confer efforts.

The Court finds Defendant's subpoenas are overbroad and seek documents outside the scope of discovery because they are not reasonably calculated to lead to the discovery of admissible evidence.

This right of

privacy applies to insurance, medical and financial records. (John B. v. Sup.Ct. (2006) 38 Cal.4th 1177, 1198 (medical records); Moskowitz v. Superior Court (1982) 137 Cal.App.3d 313, 315 (financial records) ["Personal financial information comes within the zone of privacy protected by article I, section 1 of the California Constitution."].) Plaintiff's right of privacy also extends to his confidential financial affairs, even when the information sought is admittedly relevant to the litigation. (Moskowitz v. Superior Court (1982) 137 Cal.App.3d 313, 315.)

Here, Plaintiff does not claim loss of earnings related to this civil action. Moreover, the documents requested by Defendant are overbroad because they seek without limitation as to time or subject matter "any and all documents concerning the employment or the engagement as an Independent contractor" of Plaintiff, including resumes, offer letters, compensation records, W-2 and 1099 forms, performance reviews, discipline records, absence records, health plan records, incident reports, and "all documents included in your files" relating to Plaintiff. (Asryan Declaration, ¶ 2, Exh. 1.) Defendant has agreed to limit the scope of the employment records to "leaves of absence following the incident, as well as any records showing any work restrictions after the incident." Defendant argues that these types of documents would provide information relevant to Plaintiff's injuries, and the impact of those injuries on his ability to work. (Opp. p. 3: 7-10.) Given the parties had reached an agreement, the demand shall be limited to (1) employment records showing any leaves of absence following the incident, and (2) any records showing any work restrictions after the incident.

Monetary Sanctions

Code of Civil Procedure section 1987.2

authorizes the imposition of monetary sanctions in connection with the filing of a motion to quash if the court finds the motion was made or opposed in bad faith or without substantial justification or that one or more of the requirements of the subpoena was oppressive. (Code Civ. Proc., § 1987.2.)

Plaintiff argues that Defendant failed to withdraw the overbroad subpoenas despite Plaintiff's meet and confer efforts, thus necessitating this motion. Plaintiff's counsel requests compensation for five hours at the rate of \$250.00 per hour, plus filing fees of \$80.72, for a total of \$1,330.72.

In opposition, defense counsel Justin Bubion argues that the declaration of plaintiff's counsel, Gor Asyran, omits key facts regarding their telephone call on May 4, 2026. Among them, Bubion told Asyran that they should continue discussing the issue and not proceed with any motions. (Bubion Decl., ¶ 3.) During the call, Bubion proposed that they engage in an informal discovery conference (IDC) with the court. Asyran was not interested. (Id., ¶ 4.) Bubion also proposed that if the parties could not resolve the dispute informally, and a motion was filed, that they should agree not to seek sanctions against each other. Asyran was not interested. (Id., ¶ 5.) Defense counsel seeks compensation for six hours at the rate of \$235.00 per hour for a total of \$1410.00.

The Court typically does not impose sanctions at the request of a party opposing a discovery motion, but in this case, sanctions are warranted against the moving party. In reply, Plaintiff does not dispute any of the aforementioned details of the May 4 telephone call. The parties are referred to the Courtroom Information for Dept. SE-C which states that informal discovery conferences are strongly encouraged in lieu of discovery motions. Despite Defendant's willingness to further meet and confer, Plaintiff filed the instant motion on May 6, 2026, a mere two days after their telephone call. The Court finds that Plaintiff, in bringing this motion when he did, acted prematurely. It can hardly be said that Defendant's conduct necessitated the instant motion. Thus, sanctions in the amount of \$1,175.00 are imposed upon Plaintiff and Plaintiff's counsel, jointly and severally, payable within 30 days.

Accordingly, Plaintiff's Motion to Quash Deposition Subpoena for Production of Documents is GRANTED.

Plaintiff's Motion for Sanctions is DENIED.

Defendant's Motion for Sanctions is GRANTED in part.